

# Contracts & Claims Advisory

**InfraMind EPC** | Version 2.0 | June 2026

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[inframindepc.com](http://inframindepc.com)

*Audience: EPC Contractors, PMCs, Infrastructure Owners, Legal Counsel*

## The Problem Most Organisations Do Not Address Early Enough

On EPC megaprojects, contract and claims failures rarely happen suddenly. They build over months — through missed notice deadlines, incomplete daily records, undocumented variations, and delay events that were known but never formally linked to entitlement. By the time the claim is assembled, the evidence has aged, the contemporaneous connection has weakened, and the position is harder to defend.

Industry experience suggests a significant proportion of EPC claims fail not because the entitlement is absent, but because the records are thin, the notice was late, or the methodology cannot be defended under scrutiny. The consequences includes time-barred entitlements, ongoing LD exposure, weakened arbitration positions, are measured in tens of millions of rupees.

The solution is not better claim-writing after the fact. It is better contract administration from the start.

## What InfraMind EPC Provides

End-to-end contract administration and claims management grounded in 19+ years of hands-on FIDIC contract delivery on EPC megaprojects — including the Mumbai–Ahmedabad High Speed Rail T-3 package (INR 3,142 Crore, FIDIC Yellow Book, JICA oversight) and ICC arbitration as Fact Witness on the OPGC MGR Railway Project.

Every service is designed to do two things: protect entitlement and build the contemporaneous record that defends it.

## Personal Track Record

The following metrics reflect Samanta Nayak's direct project experience at Larsen & Toubro — not InfraMind EPC client engagements, which are yet to commence.

| Metric                            | Result                | Project / Context             |
|-----------------------------------|-----------------------|-------------------------------|
| Sub-Clause 20.1 Notice Compliance | 100%                  | MAHSR T-3, L&T                |
| EOT Claims Submitted              | 15+                   | MAHSR T-3, L&T                |
| Audit Trail Standard              | ICC arbitration-ready | MAHSR T-3, L&T                |
| Delay Analysis Standard           | Forensic-grade        | MAHSR T-3 & OPGC MGR, L&T     |
| Arbitration Role                  | ICC Fact Witness      | OPGC MGR Railway Project, L&T |

## Proposed Advisory Services

The following engagement structures represent how InfraMind EPC contracts and claims advisory services are designed to operate. No client engagements are currently active, these are proposed models available for discussion and scoping.

### 1. Contract Administration

Award-to-completion administration that includes obligation tracking, compliance management, correspondence governance, and contractual risk identification throughout the project lifecycle.

**Proposed engagement:** Retainer basis, scoped per project size and complexity.

### 2. Notices & Correspondence Management

Notice preparation, Sub-Clause 20.1 deadline tracking, awareness-date monitoring, and structured correspondence protocols that maintain legal standing throughout the project.

**Proposed engagement:** Retainer basis, scoped per project.

### 3. Variation Management

Variation identification, pricing, claims preparation, and variation register management, ensuring every instructed and constructive variation is captured, valued, and submitted.

**Proposed engagement:** 2–6 weeks per variation cycle.

#### **4. Claims Preparation**

Full claim preparation including cause-and-effect analysis, delay quantification, evidence compilation, contemporaneous records assembly, and formal submission under FIDIC 1999 or 2017 procedures.

**Proposed engagement:** 4–8 weeks, subject to claim complexity and records quality.

#### **5. Contemporaneous Records System**

Design and implementation of record-keeping protocols aligned with contractual and evidentiary requirements includes daily site records, progress photographs, correspondence registers, and delay event logs structured for tribunal-grade use.

**Proposed engagement:** Scoped per project.

#### **6. EOT Integration**

Integrated delay identification, EOT claims preparation, and delay analysis across the project programme that treated as a live management function, not a reactive claim exercise.

**Proposed engagement:** 4–8 weeks, with ongoing integration support.

#### **7. Dispute Avoidance**

Early warning systems, contractual risk assessment, and prevention strategy development — identifying and resolving entitlement and scope disputes before they reach formal proceedings.

**Proposed engagement:** 2–4 weeks initial scoping, with periodic review.

#### **8. Arbitration Support**

Expert report preparation, factual witness statement support, cross-examination preparation, document review and analysis, and tribunal submission support for ICC, DIAC, SIAC, and LCIA proceedings.

**Proposed engagement:** 8–24 weeks, subject to proceeding complexity.

## Indicative Engagement Models

| Model          | Scope                                            | Indicative Investment | Proposed Duration  |
|----------------|--------------------------------------------------|-----------------------|--------------------|
| Administration | Contract administration, notices, correspondence | INR 2–5 Lakhs/month   | Scoped per project |
| Claims         | Claims preparation, EOT integration              | INR 8–25 Lakhs        | 4–8 weeks          |
| Arbitration    | Expert report, witness statement, hearing        | INR 10–50 Lakhs       | 8–24 weeks         |

*All engagements to be individually scoped based on project complexity, records quality, and dispute status. Indicative figures are for discussion purposes only.*

## Evidence Hierarchy — How Claims Are Built to Last

The quality of a claim is determined by the quality of its evidence, not the sophistication of the analysis placed over weak records. Every engagement is structured around this hierarchy.

| Priority | Evidence Type                                 | Weight     |
|----------|-----------------------------------------------|------------|
| 1        | Contemporaneous daily site records            | High       |
| 2        | Site instructions and Engineer correspondence | High       |
| 3        | Programme updates showing delay impact        | High       |
| 4        | Weekly and monthly progress reports           | Medium     |
| 5        | Meeting minutes                               | Medium     |
| 6        | Photographs and site records                  | Medium     |
| 7        | Expert analysis                               | Supporting |

## Personal Project Experience

### MAHSR T-3 Track Package — Mumbai–Ahmedabad High Speed Rail

| Field        | Detail                  |
|--------------|-------------------------|
| Value        | INR 3,142 Crore         |
| Contract     | FIDIC Yellow Book 1999  |
| Employer     | NHSRCL                  |
| Engineer–PMC | JICC                    |
| Contractor   | Larsen & Toubro Limited |
| Funder       | JICA                    |

| Field | Detail                                                   |
|-------|----------------------------------------------------------|
| Scope | 115.877 km ballastless slab track, Vadodara to Sabarmati |
| Role  | Manager – Contracts & Claims                             |

Key results achieved in this role:

- 100% Sub-Clause 20.1 compliance across tenure — zero time-barred claims
- 15+ EOT claims submitted, all supported by contemporaneous records
- Complete defensible audit trail maintained for ICC arbitration readiness
- Notice management system implemented and maintained across all subcontract packages

### OPGC MGR Railway Project — ICC Arbitration

| Field            | Detail                                         |
|------------------|------------------------------------------------|
| Value            | INR 10.9 Bn                                    |
| Role             | Assistant Manager – Contracts, Larsen & Toubro |
| Arbitration Role | ICC Fact Witness                               |

Key contributions:

- Statement of Claim (SOC) prepared with detailed technical and contractual substantiation
- Comprehensive evidence dossiers compiled supporting quantum and liability claims
- Fact Witness testimony provided before ICC Arbitration Panel, substantiating time delays, cost impacts, and causation narratives
- Coordinated with legal counsel on document discovery, interrogatories, and cross-examination preparation
- Contributed to response to Statement of Defence (SOD) and counter-claim positions
- Managed Award Disposal and post-arbitration implementation

### Competitive Position

| Criterion                     | Generic Consultant | Legal Firm | InfraMind EPC |
|-------------------------------|--------------------|------------|---------------|
| FIDIC Contractual Awareness   | Partial            | Partial    | Full          |
| Contract Administration Depth | Basic              | None       | Full          |
| Claims Preparation            | Limited            | Limited    | Full          |

| Criterion                              | Generic Consultant | Legal Firm | InfraMind EPC |
|----------------------------------------|--------------------|------------|---------------|
| Delay Analysis                         | Variable           | None       | Full          |
| Dispute Avoidance                      | None               | None       | Full          |
| Arbitration Experience                 | Limited            | Limited    | Full          |
| Active Megaproject Delivery Background | Unknown            | Unknown    | Verified      |

## Six Differentiators

| # | Differentiator          | What It Means                                                                                    |
|---|-------------------------|--------------------------------------------------------------------------------------------------|
| 1 | Practitioner-Built      | Every approach designed by a practicing Contracts Manager with 19+ years EPC experience          |
| 2 | Megaproject-Tested      | Methods applied on MAHSR T-3 (INR 3,142 Cr.) and OPGC MGR Railway — live delivery, not prototype |
| 3 | FIDIC Contract-Aware    | Clause-level intelligence. Notice periods, claim entitlements, compliance obligations.           |
| 4 | Defensible Records      | Timestamp-governed, ICC-ready audit trail approach. Built by a Fact Witness.                     |
| 5 | Full Lifecycle Coverage | From baseline development through arbitration. No handoffs. No knowledge loss.                   |
| 6 | Integrated Approach     | Contract administration, delay analysis, records, and AI tools designed to work together         |

## What "Practitioner-Built" Actually Means

These services are not offered by an advisory firm that observes EPC projects from the outside. They are designed by someone who currently holds responsibility for contract administration, claims defence, and dispute board management on a live JICA-funded megaproject — and who has appeared as a Fact Witness in ICC arbitration proceedings.

That means the approach reflects what tribunals actually ask for, what engineers actually challenge, and what contemporaneous record systems need to look like to survive scrutiny — not what a consulting methodology manual describes in theory.

## Next Steps

1. **Schedule a consultation** — 30-minute call to understand your project's contract position, claim history, and immediate priorities.

2. **Scope assessment** — Review of contract form, records quality, and claim or dispute status. A structured position assessment is provided.
3. **Proposal** — Tailored engagement scope, timeline, and investment aligned to your specific needs.

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*InfraMind EPC — Digitise. Analyse. Decide.*

*MAHSR T-3 | FIDIC Yellow Book | JICA-Funded Megaprojects | 2026 InfraMind EPC. All rights reserved.*

*Contracts & Claims Advisory Brochure v2.0 | June 2026*